

the oral proceedings. It did not regard their merely stating that the evidence had been filed in response to its preliminary opinion or their pointing to shortcomings in the proprietor's experimental reports as amounting to adequate reasons for the late filing, observing that they had had ample time (over 1.5 years) to file suitable evidence. However, see also T.23/17 (opponent's argument that new documents had been filed in response to experimental data produced by the patent proprietor in its reply held plausible and understandable).

In T.256/17 the board refused to admit two new lines of attack based on lack of inventive step which the appellant (opponent) had filed in response to the respondent's reply to the statement of grounds of appeal. Both lines of attack were based on documents submitted during the first-instance proceedings. The appellant gave no reasons for first raising these objections after having filed the statement of grounds of appeal, and the board could see no reason for it either. It pointed out that, by acting in this way, the appellant had prevented the respondent from reacting to the attack during the opposition proceedings and the opposition division from deciding on the matter.

For further cases where the party concerned did not provide any reasons for submitting new requests at this stage of the proceedings and the amendments were not admitted, see T.2112/16 (in which the board also noted that the amendments made in request 1A did not overcome the raised objections) and T.967/16 (no established "last chance" doctrine; see chapter V.A.4.5.10g)).

However, in T.938/14 the board exceptionally admitted auxiliary request 2, filed in response to the respondent's submissions and identical to the main request underlying the decision under appeal, despite the fact that no justification was offered for the late reintroduction, as the request allowed the board to review the decision under appeal.

Whether the late filing of submissions was justified is a factor the boards have considered in exercising their discretion; see chapter V.A.4.5.10d) in particular.

#### c) Substantiation of amendments to patent application or patent

In T.667/18 the board noted that it was established case law that requests which were not properly **substantiated** were not admissible. In the case in hand, the claims of the new main request filed in reply to the board's preliminary opinion combined features which had never been claimed before, without any explanation. As regards inventive step, the appellant's (applicant's) submissions were restricted to an unclear reference to items in its statement setting out the grounds of appeal, which in any case related to novelty and inventive step of the then main request. For these reasons the board used its discretion under Art. 13(1) RPBA 2020 not to admit the main request.

In T.32/16, in its written response the respondent (patentee) had stated from where the amendment was taken (Art. 12(4) RPBA 2020). The board noted that the introduced terminology was an explicit recitation of the language used in the application as filed. Demonstration of how these amendments overcame the objection in this particular case,

where the lacking features as such had already been identified by the appellant (opponent), was thus **self-evident** in the amendments made.

By contrast, the board in T.700/15 found that the appellant (patent proprietor) had not demonstrated, as required under Art. 13(1) RPBA 2020, that the amendment – namely new auxiliary requests (1', 1'o, 1'a, etc.) – overcame, *prima facie*, issues raised by the board; nor was this apparent to the board from the amendment itself. It therefore refused to admit the auxiliary requests.

In T.319/18 (where it was not immediately apparent how auxiliary request 5 was directed to overcoming the inventive-step objection over document D1) the board pointed out that it was established jurisprudence of the boards that requests that were not self-explanatory became **effective only** on the date on which they were **substantiated** (with reference to T.1732/10). See also T.2457/16.

#### 4.4.5 Discretion under Article 13(1) RPBA 2020 – new requests

##### a) Deletion of claims or alternatives within claims

In T.1597/16 the admission of the new main request, which had been filed before the entry into force of the RPBA 2020, was at the board's discretion under Art. 13(1) RPBA 2020 and Art. 13(1) RPBA 2007 (which applied instead of Art. 13(2) RPBA 2020 by virtue of the transitional provisions). In the board's view, the respondent had not given any cogent reasons for waiting until the final stage of the appeal proceedings to file the amendment to the claim. It had merely asserted that the new request had first been prompted by the board's preliminary opinion in the communication under Art. 15(1) RPBA 2007. However, this did not convince the board because the communication had not raised any brand new issues. On the contrary, the objections it mentioned had been part of the appeal proceedings from the outset. Nonetheless, the board decided to admit the new main request into the proceedings for the following reasons. Limiting the claimed subject-matter to two out of the three alternatives in claim 1 as granted did **not lead to any other disputed points of fact or patent law**. The appellant (opponent) had been able to formulate an objection for lack of inventive step straight away and could otherwise refer to its written case, which matched that from the first-instance proceedings. Moreover, the board considered the new request to be *prima facie* allowable since it appeared to overcome all remaining objections without creating any new issues.

In T.682/16 the respondent (proprietor) filed a new request (which later became the main request) in response to the board's communication under Art. 15(1) RPBA 2007, without making any substantive submissions. The appellant did not provide any reasons against its admission. The board noted that, by deleting certain claims, the respondent had addressed all issues raised by the appellant and by the board. The request, which moreover did not give rise to new objections and contributed to the efficiency of the procedure, was admitted under Art. 13(1) RPBA 2020 (Art. 13(2) RPBA 2020 not being applicable yet).

In T 482/19, however, the board did not admit the new request, in which the method claims had been deleted, since the appellant had not demonstrated any exceptional circumstances (Art. 13(2) RPBA 2020). See also T 2222/15.

In cases of limitation of the claimed subject-matter by deletions of claims or claim alternatives, the issue arises whether this is an amendment within the meaning of Art. 13 RPBA 2020 in the first place. For decisions on this issue, see chapter V.A.4.2.2.

b) Timely and legitimate reaction to issues raised – requests admitted

In T 851/18 of 10 January 2020 (in which Art. 13(1) RPBA 2020 and Art. 13 RPBA 2007, but not Art. 13(2) RPBA 2020, were applicable under Art. 25(1) and (3) RPBA 2020), the auxiliary request filed at the oral proceedings before the board differed from the claims with which the patent had been maintained by the opposition division in two respects. First, its claim 1 combined the subject-matter of claims 1 and 3 as maintained, an amendment already made in the auxiliary request filed in reply to the communication under Art. 15(1) RPBA 2007. Second, the subject-matter of claim 3 had also been included in the second independent claim 7 for the first time. The board considered that these two amendments were relatively straightforward, did not give rise to any new issues and were appropriate and so, despite the late stage reached in the proceedings, saw no reason not to admit the auxiliary request filed at the oral proceedings and the related arguments. The inclusion of the features of claim 3 as maintained in claim 1 amounted, in essence, to a deletion of the broader claim 1 as maintained and answered all the objections in a procedurally efficient way, while claim 3 as maintained had not been contested in the proceedings up to that point. The second amendment obviously overcame a novelty objection the board had raised to claim 7.

In ex parte case T 278/17 the amendments in the (sole) claim of the main request were a reaction to issues raised by the board for the first time during a telephone conversation with regard to auxiliary request 2. Auxiliary request 2 had in turn been a serious attempt to overcome all of the issues raised – mainly for the first time – in the communication under Art. 15(1) RPBA 2007. Since the amendments were directed to and clearly overcame all of the objections raised in the telephone conversation and the communication under Art. 15(1) RPBA 2007, the board admitted the new main request, having regard to Art. 13(1) RPBA 2020 and Art. 13(1) and (3) RPBA 2007.

In T 131/18 the board first of all assessed whether, hypothetically, it would have admitted auxiliary request 3 filed in response to the reply, because, apart from two amendments, its wording and content were identical to the new auxiliary request 6 now at issue. It considered auxiliary request 3 admissible for the following reasons: the main request the appellant had filed with its grounds of appeal had been a first attempt to remedy the infringement of Art. 123(2) EPC established in the contested decision and, as it had demonstrated, the further minor amendments made in auxiliary request 3 had simply been its response to the additional objections to that main request raised in the reply under Art. 123(2), 83 and 84 EPC. Moreover, auxiliary request 3 had not been filed so late that the respondent (opponent) had no longer been able to react. The board found that the amendments made overcame the existing problems without giving rise to any new ones

and so concluded that it would have exercised its discretion under Art. 13(1) RPBA 2020 to admit auxiliary request 3. The editorial adjustments to that request which had been made in auxiliary request 6 in order to remove inconsistencies were also admitted under Art. 13(2) RPBA 2020 (see under chapter V.A.4.5.5h)).

For further inter partes cases where the boards admitted new requests which were filed in good time and prima facie allowable, see e.g. T 32/16 (see abstract in chapter V.A.4.4.5c) below), T 2101/16 (legitimate reaction to clarification of Art. 83 objection raised in statement of grounds of opposition), T 102/16 (inventive-step objection raised for the first time in the board's preliminary opinion, essentially a combination of two claims of the patent as granted, no need to adjourn), T 731/16 (new request filed two days before oral proceedings, only difference from claim version as maintained "bzw." instead of "oder"; legitimate reaction to new interpretation in communication under Art. 15(1) RPBA 2007).

For a further ex parte case, see T 2129/16 (request clearly overcame the clarity objection raised for the first time in the board's preliminary opinion).

On a party's **duty to provide reasons** for not amending its case at an earlier stage in the proceedings (Art. 13(1), third sentence, RPBA 2020), see also chapter V.A.4.4.4b).

- c) New request in response to preliminary opinion of the board clarifying objections – admitted

In T 32/16, with regard to the respondent's reasons for submitting the request in issue only in response to the board's preliminary opinion (Art. 13(1), third sentence, RPBA 2020) and its justification for this amendment to its appeal case (Art. 13(1), first sentence, RPBA 2020), the board highlighted the special circumstances of the case in hand, where the board's communication had **crystallised for the first time** what the board itself had deduced to be the relevant elements of the appellant's lengthy arguments concerning its objections under Art. 100(c) EPC. Although the appellant had stated that its set of arguments was always supposed to have been understood in the way the board had deduced, the board took the view that its statement could be understood as having identified the salient argument for the first time. In the context of the very special circumstances of the case, the board accepted the respondent's reasons for submitting the (now) main request at such a late stage. The board also noted that the respondent's amended request had been submitted on the day it received the board's preliminary opinion. It had thus responded without delay to the objections once these had been identified. Regarding the criterion stated in Art. 13(1), last sentence, RPBA 2020 as to whether the respondent had demonstrated that the amendment prima facie overcame the issues raised by the appellant or by the board and did not give rise to new objections, the board noted that the main request directly addressed the objections of added subject-matter. In its written response, the respondent had also stated from where the amendment was taken (Art. 12(4), second sentence, RPBA 2020). The board noted that the introduced terminology was an explicit recitation of the language used in the application as filed. Demonstration of how these amendments overcame the objection in this particular case, where the lacking features as such had at least already been identified by the appellant, was thus self-evident in the amendments made. Moreover, the amendments were not

complex (Art. 13(1) RPBA 2007; Art. 13(1), second sentence, RPBA 2020, referring to Art. 12(4) RPBA 2020) in any sense, nor had this been argued to be the case.

- d) Board's communication confirming the opposition division's or opponent's opinion – not a justification

In the cases reported below, the boards, based on the transitional provisions, applied Art. 13(1) RPBA 2020 (and Art. 13 RPBA 2007) – instead of Art. 13(2) RPBA 2020 – even though the requests at issue had been filed at the last stage of the proceedings (i.e. after the summons to oral proceedings).

In T 136/16 the board considered the criteria under Art. 13(1) RPBA 2020 and exercised its discretion not to admit auxiliary request 1, which had been filed after the summons to oral proceedings. It found, first, that the amendment made in auxiliary request 1 *prima facie* led to a new objection under Art. 84 EPC and, second, that this amendment could and should have been made at an earlier stage in the appeal proceedings. Indeed, in the contested decision the opposition division had already pointed out the fundamental importance of the interpretation of a disputed term in the claim. The opposition division had construed this term narrowly in the light of paragraph 7 of the description, but in its statement of grounds the appellant (opponent) had submitted detailed arguments contradicting this narrow interpretation on the basis of other passages of the description. Since the amendment had been made in view of an issue of fact that had already been discussed extensively, the respondent (patent proprietor) had already had cause to make it together with its reply. Its argument that the large number of attacks put forward prevented it from formulating meaningful auxiliary requests until it had the board's preliminary opinion did not convince the board either, given the fundamental importance of the interpretation of the term at issue in almost all the objections raised. In addition, given the circumstances of the case, the board deemed it detrimental to procedural economy to wait until that stage of the appeal proceedings to file auxiliary requests containing such an amendment.

In T 1004/18 the board found that it had already been foreseeable for the respondent (patent proprietor) on the basis of the grounds of appeal that it would take the same line as either the opposition division or the appellant and that, accordingly, it should already have come up with auxiliary requests as a fallback position in its reply to the grounds of appeal.

The board in T 700/15 similarly held that a communication from the board which merely summarised and reiterated the interpretation already reached by the opposition division in the contested decision and advocated by the opponent and did not include any new aspects or arguments or raise any new objection could not be taken as justification for filing new auxiliary requests that could have been filed earlier (referring to Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.7).

For a further case in which an objection had been on file since the filing of the grounds of appeal and new requests in reaction to a statement of the board reiterating this objection were not admitted under Art. 13(1) RPBA 2020, see e.g. T 1170/16.